Temporary
3253

Executive Order

REJECTING THE BID OF BAUSCH & LOMB OPTICAL COMPANY FOR CERTAIN LETTERS PATENT OF THE UNITED STATES AND DAMAGES FOR PAST INFRINGEMENTS THEREOF OFFERED FOR SALE IN CONNECTION WITH THE OFFERING FOR SALE OF CERTAIN SHARES OF THE CAPITAL STOCK OF C. P. GOERZ AMERICAN OPTICAL COMPANY, A NEW YORK CORPORATION, AT PUBLIC AUCTION ON THE 5TH DAY OF MARCH, 1920, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by "An act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order;

WHEREAS, the Alien Property Custodian offered for sale at auction in the City of New York, State of New York, at 11:00 o'clock A. M. on the 5th day of March, 1920, certain shares of the capital stock of C. P. Goerz American Optical Company, a New York corporation, and other property, said shares and other property being described as follows:

ITEM I. 549 shares of the common capital stock of C. P. Goerz American Optical Company, a New York Corporation, of the par value of $100 each, out of a total of 600 shares of the common capital stock of said corporation, all of which are issued and outstanding.

ITEM II. A non-exclusive right and license permitting the said C. P. Goerz American Optical Company to manufacture, sell and use, without the payment of any royalty or other compensation, devices, apparatus and instruments disclosed in and covered by the following letters patent of the United States:

Patents Relating to Binoculars and Like Devices

Patent No.	*Date of Issue*	*Title*
709,898	Sept. 30, 1902	Binocular Prism-Telescope
781,233	Jan. 31, 1905	Prism-support for use with Optical Instruments
836,273	Nov. 20, 1906	Prism-Telescope
898,653	Sept. 15, 1908	Prismatic Double Telescope
904,066	Nov. 17, 1908	Prism-Telescope and Similar Prism-carrying Device and Means for adjusting the Prisms
1,136,951	April 27, 1915	Surveying Instrument

Patents Relating to Lenses, Cameras and Photographic Apparatus Generally

Patent No.	*Date of Issue*	*Title*
709,480	Sept. 23, 1902	Folding Stereoscopic Camera
738,402	Sept. 8, 1903	Shutter for Photographic Objectives
745,550	Dec. 1, 1903	Photographic Objective
777,320	Dec. 13, 1904	Photographic Objective
833,916	Oct. 23, 1906	Roller-blind for Photographic Cameras
877,499	Jan. 28, 1908	Device for successively exposing Sensitive Sheets
886,739	May 5, 1908	Device for Focusing Photographic Cameras
902,822	Nov. 3, 1908	Folding Photographic Camera
909,459	Jan. 12, 1909	Device for exposing Light-Sensitive Layer-carriers
912,352	Feb. 16, 1909	Objective
913,353	Feb. 23, 1909	Foldable Reflex-Camera
926,495	June 29, 1909	Photographic Change Box
930,621	Aug. 10, 1909	Packing for Light-Sensitive Layer-carriers
941,126	Nov. 23, 1909	Roller-blind for Photographic Cameras

Patents Relating to Lenses, Cameras and Photographic Apparatus Generally—Con.

Patent No.	*Date of Issue*	*Title*
944,595	Dec. 28, 1909	Photographic Camera
947,946	Feb. 1, 1910	Device for exposing Light-Sensitive Layer-carriers and Film Structure therefor
984,007	Feb. 14, 1911	Device for exposing Sensitive Layer-carriers
986,420	Mar. 7, 1911	Film Pack and Adapter therefor
988,637	April 4, 1911	Level
989,784	April 18, 1911	Photographic Camera
1,000,630	Aug. 15, 1911	Packing for Light-Sensitive Layer-carriers
1,066,955	July 8, 1913	Magazine Plate-holder and Film-pack therefor
1,098,844	June 2, 1914	Package for Light-Sensitive Films
1,108,307	Aug. 25, 1914	Spherically, chromatically, astigmatically and comatically Corrected Double Objective
1,151,978	Aug. 31, 1915	Cinematographic Apparatus
1,196,116	Aug. 29, 1916	Folding Camera
1,199,238	Sept. 26, 1916	Photographic Plate-holder

Patents Relating to Gun Sights, Periscopes and Other Military and Naval Instruments

Patent No.	*Date of Issue*	*Title*
813,933	Feb. 27, 1906	Automatic Recording Device
829,121	Aug. 21, 1906	Telescope for Submarine and Submergible Boats
831,350	Sept. 18, 1906	Telescope with Refracted Optical Axis
879,572	Feb. 18, 1908	Telescope with Displaceable Reversing System
881,127	Mar. 10, 1908	Instrument for Optically Measuring Distances
881,590	Mar. 10, 1908	Mounting of Sighting Telescopes
882,762	Mar. 24, 1908	Panoramic Telescope
886,722	May 5, 1908	Telescope
892,731	July 7, 1908	Angle-measuring Instrument with Telescopes
907,366	Dec. 22, 1908	Sighting Telescope for Arms and Arm with Sighting Telescope
934,440	Sept. 21, 1909	Ocular Prism for Base-line Telemeters
941,503	Nov. 30, 1909	Optical Distance-measuring Instrument
972,622	Oct. 11, 1910	Stereotelescope
976,370	Nov. 22, 1910	Periscope
1,001,958	Aug. 29, 1911	Attaching Device for Optical Instruments
1,027,420	May 28, 1912	Angular Mirror
1,038,831	Sept. 17, 1912	Distance-measuring Instrument of the Coincident-image type
1,060,902	May 6, 1913	Base-line Telemeter
1,066,906	July 8, 1913	Distance-measuring Instrument
1,067,027	July 8, 1913	Telemeter
1,085,611	Feb. 3, 1914	Annular Mirror Periscope
1,085,612	Feb. 3, 1914	Adjusting Device for Optical Instrument
1,086,297	Feb. 3, 1914	Prismatic Device
1,088,701	Mar. 3, 1914	Distance-measuring Instrument
1,091,933	Mar. 31, 1914	Telescope with Variable Magnification
1,097,035	May 26, 1914	Telescope with Variable Magnification
1,098,925	June 2, 1914	Periscope
1,104,769	July 28, 1914	Optical System for Prism-carrying Devices
1,108,180	Aug. 25, 1914	Base-line Telemeter
1,116,069	Nov. 3, 1914	Telescope of Unvariable Length and Progressively-Variable Magnification
1,146,428	July 13, 1915	Device for Taking Aim with Quick-firing Guns with Protecting Shields and Telescopic Sight
1,147,990	July 27, 1915	Distance-measuring Instrument
1,160,614	Nov. 16, 1915	Distance-measuring Instrument
1,160,615	Nov. 16, 1915	Aiming Device
1,209,958	Dec. 26, 1916	Panoramic Telescope
1,236,722	Aug. 14, 1917	Optical System of Variable Magnification
1,247,185	Nov. 20, 1917	Distance-measuring Instrument

ITEM III. The following letters patent of the United States, ***subject however*** to the aforesaid license and also to the right of the United States to practice any invention covered by said letters patent and to use and manufacture, and have manufactured, for its use any and every device, apparatus and instrument disclosed in and covered by said letters patent:

Patents Relating to Binoculars and Like Devices

Patent No.	*Date of Issue*	*Title*
709,898	Sept. 30, 1902	Binocular Prism-Telescope
781,233	Jan. 31, 1905	Prism-support for use with Optical Instruments
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709,480	Sept. 23, 1902	Folding Stereoscopic Camera
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941,126	Nov. 23, 1909	Roller-blind for Photographic Cameras
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989,784	April 18, 1911	Photographic Camera
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1,066,955	July 8, 1913	Magazine Plate-Holder and Film-pack therefor
1,098,844	June 2, 1914	Package for Light-Sensitive Films
1,108,307	Aug. 25, 1914	Spherically, chromatically, astigmatically and comatically Corrected Double Objective
1,151,978	Aug. 31, 1915	Cinematographic Apparatus
1,196,116	Aug. 29, 1916	Folding Camera
1,199,238	Sept. 26, 1916	Photographic Plate-Holder

Also all damages and profits recoverable at Law or in equity from any and every person, firm, corporation or government for every past infringement of each and all of the letters patent enumerated in this Item III, including the following letters patent except such infringements as arose from the use or manufacture by or for the United States of any of the inventions described in and covered by the letters patent enumerated in this Item III, including the following letters patent:

Patent No.	*Date of Issue*	*Title*
564,216	July 21, 1896	Photographic Shutter
599,700	Mar. 1, 1898	Combined Lens for Photographic Purposes
635,472	Oct. 24, 1899	Photographic Objective
635,473	Oct. 24, 1899	Three-lens System for Photographic Purposes
648,123	April 24, 1900	Telescopic Tripod
677,460	July 2, 1901	Photographic Magazine Camera
687,373	Nov. 26, 1901	Focal Adjustment for Binocular Optical Instruments
695,638	Mar. 18, 1902	Magazine Plate-Holder
695,639	Mar. 18, 1902	Photographic Roll Holder
704,320	July 8, 1902	Folding Camera with Roll-Film Magazine
706,650	Aug. 12, 1902	Astigmatically Corrected Wide-Angle Objective
706,651	Aug. 12, 1902	Magazine Plate-Holder

ITEM IV. The following letters patent of the United States, *subject however* to the aforesaid license and also to the right of the United States to practice any invention covered by said letters patent and to use and manufacture, and have manufactured, for its use any and every device, apparatus and instrument disclosed in and covered by said letters patent:

Patents Relating to Gun Sights, Periscopes and Other Military and Naval Instruments

Patent No.	*Date of Issue*	*Title*
813,933	Feb. 27, 1906	Automatic Recording Device
829,121	Aug. 21, 1906	Telescope for Submarine and Submergible Boats
831,350	Sept. 18, 1906	Telescope with Refracted Optical Axis
879,572	Feb. 18, 1908	Telescope with Displaceable Reversing System
881,127	Mar. 10, 1908	Instrument for Optically Measuring Distances
881,590	Mar. 10, 1908	Mounting of Sighting Telescopes
882,762	Mar. 24, 1908	Panoramic Telescope
886,722	May 5, 1908	Telescope
892,731	July 7, 1908	Angle-measuring Instrument with Telescopes
907,366	Dec. 22, 1908	Sighting Telescope for Arms and Arm with Sighting Telescope
934,440	Sept. 21, 1909	Ocular Prism for Base-line Telemeters

Patents Relating to Gun Sights, Periscopes and Other Military and Naval Instruments—Continued.

Patent No.	*Date of Issue*	*Title*
941,503	Nov. 30, 1909	Optical Distance-measuring Instrument
972,622	Oct. 11, 1910	Stereotelescope
976,370	Nov. 22, 1910	Periscope
1,001,958	Aug. 29, 1911	Attaching Device for Optical Instruments
1,027,420	May 28, 1912	Angular Mirror
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1,088,701	Mar. 3, 1914	Distance-measuring Instrument
1,091,953	Mar. 31, 1914	Telescope with Variable Magnification
1,097,635	May 26, 1914	Telescope with Variable Magnification
1,098,905	June 2, 1914	Periscope
1,104,769	July 28, 1914	Optical System for Prism-carrying Devices
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1,116,069	Nov. 3, 1914	Telescope of Unvariable Length and Progressively Variable Magnification
1,146,428	July 13, 1915	Device for taking Aim with Quick-firing Guns with Protecting Shields and Telescopic Sight
1,147,990	July 27, 1915	Distance-measuring Instrument
1,160,614	Nov. 16, 1915	Distance-measuring Instrument
1,160,615	Nov. 16, 1915	Aiming Device
1,209,958	Dec. 26, 1916	Panoramic Telescope
1,236,722	Aug. 14, 1917	Optical System of Variable Magnification
1,247,185	Nov. 20, 1917	Distance-measuring Instrument

ITEM V. All damages and profits recoverable at law or in equity from any and every person, firm, corporation or government for every past infringement of each and all of the letters patent enumerated in Items IV and VI hereof, except such infringements as arose from the use or manufacture by or for the United States of any of the inventions described in and covered by said letters patent enumerated in Items IV and VI.

ITEM VI. Letters patent of the United States No. 784,487, dated March 7, 1905, entitled *Tangent-scale Telescope for guns*, and No. 784,852, dated March 14, 1905, entitled *Panorama-Telescope, subject however* to the right of the United States to manufacture in its own shops and have manufactured elsewhere in the United States, to use and to sell panoramic sights possessing any or all of the features covered by and described in these two letters patent, as more particularly provided by and specified in an agreement dated April 20, 1909, between the said Optische Anstalt C. P. Goerz Optical Company (sic) and the United States of America.

AND WHEREAS, the highest bid received for the property described as Items IV, V and VI was a bid of one thousand three hundred dollars ($1,300) for the whole property described by said Items, which bid was made by Bausch & Lomb Optical Company.

The Alien Property Custodian is hereby authorized and shall have the right to reject all bids made at said sale for the property described in Items IV, V and VI, including the bid of the said Bausch & Lomb Optical Company.

My reason for the foregoing determination and order is that the above stated price bid for the said property is inadequate and not the fair value thereof.

Done in the District of Columbia this 27th day of March, in the year of our Lord one thousand nine hundred and twenty, and in the year of the independence of the United States, the one hundred forty-fourth.

WOODROW WILSON

[No. 3253.]